



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35053609

Date: JAN. 16, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (Religious Worker – R-1)

The Petitioner, a religious organization, seeks to classify the Beneficiary as an R-1 nonimmigrant religious worker to perform services as a Buddhist nun. *See* Immigration and Nationality Act (the Act) Section 101(a)(15)(R), 8 U.S.C. § 1101(a)(15)(R). This nonimmigrant R-1 classification allows non-profit religious organizations, or their affiliates, to temporarily employ foreign nationals as ministers, in religious vocations, or in religious occupations in the United States.

The Director of the California Service Center initially denied the petition on the ground that the Petitioner did not satisfactorily complete a pre-approval on-site inspection that U.S. Citizenship and Immigration Services (USCIS) relied on to verify supporting evidence. *See* 8 C.F.R. § 214.2(r)(16). The Petitioner appealed. We withdrew the Director's initial decision and remanded the matter to the Director, noting that while the record included evidence of a 2019 overseas investigation on the Beneficiary's former employer, the Director did not sufficiently explain how the overseas investigation constituted an "on-site inspection of the petitioning organization," referenced in 8 C.F.R. § 214.2(r)(16). We indicated in our remand decision that the Director should consider whether the Petitioner has established eligibility to classify the Beneficiary as an R-1 nonimmigrant religious worker, including whether it has satisfied the requirements under 8 C.F.R. § 214.2(r)(1)(i) and (8)(ii).

In July 2024, the Director again denied the petition, concluding that the Petitioner failed to show that the Beneficiary had been "a member of a religious denomination having a bona fide non-profit religious organization in the United States for at least two years immediately preceding the time of application for admission." 8 C.F.R. § 214.2(r)(1)(i); *see also* 8 C.F.R. § 214.2(r)(8)(ii). The Petitioner appeals, maintaining that the Beneficiary was "a tonsured Buddhist nun" and a member of the Petitioner's denomination "from March 1, 2014, through February 28, 2016," two years before the Petitioner filed the petition on February 29, 2016.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Non-profit religious organizations may petition for foreign nationals to work in the United States for up to five years to perform religious work as ministers, in religious vocations, or in religious occupations. The petitioning organization must establish, among other requirements, that the foreign national beneficiary has been a member of a religious denomination for at least the two-year period before the date the petition is filed. *See generally* Section 101(a)(15)(R) of the Act; 8 C.F.R. § 214.2(r). Additionally, the regulation at 8 C.F.R. § 214.2(r)(8)(ii) requires the petitioner to attest that the beneficiary “has been a member of the denomination for at least two years and that the [beneficiary] is otherwise qualified for the position offered.”

Moreover, the regulation at 8 C.F.R. § 214.2(r)(16) provides:

Inspections, evaluations, verifications, and compliance reviews. The supporting evidence submitted may be verified by USCIS through any means determined appropriate by USCIS, up to and including an on-site inspection of the petitioning organization

II. ANALYSIS

As noted, the Petitioner filed the petition on February 29, 2016. As such, it must establish that the Beneficiary was “a member of a religious denomination having a bona fide non-profit religious organization in the United States” from February 2014 through February 2016. 8 C.F.R. § 214.2(r)(1)(i). The record shows that the Beneficiary arrived at the United States in December 2015 as a nonimmigrant visitor.

On appeal, the Petitioner maintains that the Beneficiary has been a “lifelong” member in the Buddhist faith. The record includes documents – such as a February 2016 [redacted] Employment Certificate,” a May 2020 statement from [redacted] a January 2016 “Certificate of Tonsure,” a December 2016 “Certificate of Ordination,” July 2010 “Master of Dharma-Listening Sessions Certificate[s],” August 2011 “Acarya Certificate[s],” and a November 2012 “Recognition Certificate” – that the Petitioner has offered as supporting evidence to show the Beneficiary possessed the necessary two-year membership from February 2014 through February 2016. *See* 8 C.F.R. § 214.2(r)(1)(i).

Upon a review of the record in its entirety, we conclude that the Petitioner has not sufficiently demonstrated that from February 2014 through February 2016, the Beneficiary possessed the required two-year membership in “a religious denomination having a bona fide non-profit religious organization in the United States.” 8 C.F.R. § 214.2(r)(1)(i). The petitioning organization submits a “Certificate of Tonsure,” as well as a “Certificate of Ordination,” indicating that the Beneficiary was “tonsured by [redacted] Master on January 19th, 2016, to become an Acolyte nun” in the United States.

To demonstrate that the Beneficiary possessed the necessary two-year membership before she arrived in the United States in December 2015, the Petitioner presents documents including the February 2016 [redacted] Employment Certificate,” which stated that the Beneficiary “ha[d] been working as a religious worker in [redacted] since July 2012.” This document

was signed by [] the purported “Chair Person” of the center. The document listed [] as the center’s address. The Petitioner also offers a May 4, 2020, statement from [] reiterating that while in China, the Beneficiary was involved with the [] which counsel claims on page 6 of the appellate brief was “located at the [].”¹ The May 2020 statement from [] listed a [] address for the center that matches the address listed in the [] Employment Certificate.”

The Petitioner has not sufficiently demonstrated the veracity and accuracy of [] Employment Certificate” or [] May 2020 statement. Specifically, as the Director noted, a 2019 overseas investigation revealed, in part:

- No public information was found for [] or []
- The center’s address, listed in the [] Employment Certificate,” was the address for a residential building, where the number 28 did not exist;
- Photographs and interviews of residents did not support a finding that the building was previously used for worship or meditation; and
- Telephone numbers listed in the [] Employment Certificate” were not in service.

On appeal, the Petitioner points to [] Chinese national identification card and argues that the address listed on his identification card “shows the existence of the physical address the overseas investigator claims does not exist.” The address listed on the identification card is [] This address, however, does not match the address listed in the [] Employment Certificate” or [] May 2020 statement. Specifically, the identification card listed an address in the [] while the [] Employment Certificate” and [] statement listed an address in the [] Similarly, the identification card referenced “Building No. 3,” while the [] Employment Certificate” did not reference a building number, and [] statement referenced “building 1-3.” Also, the address printed on the foreign language identification card included the notation “3-2-28,” which did not appear in the English translation of the identification card, or the address listed in the [] Employment Certificate” or [] May 2020 statement. The record contains no other evidence establishing the existence of the address that the Petitioner and/or [] claimed housed [] or [] Considering the discrepancies discussed above, the lack of other corroborating evidence, and the derogatory information revealed from the overseas investigation, the Petitioner has not sufficiently established the veracity and accuracy of [] Employment Certificate” or []

¹ The May 2020 statement alleges that “the [] was forced to close down in June of 2016,” because “large religious gathering was against the law” in China. On appeal, the Petitioner offers materials concerning Chinese government’s restrictions on religious practice.

May 2020 statement concerning the Beneficiary's membership. *See* 8 C.F.R. § 214.2(r)(1)(i); *see also* 8 C.F.R. § 214.2(r)(16) (specifying that "[t]he supporting evidence submitted may be verified by USCIS through any means determined appropriate by USCIS").

Additionally, as the Director noted in the July 2024 decision, the information contained in the [REDACTED] [REDACTED] Employment Certificate" is inconsistent with other documentation. Specifically, the [REDACTED] Employment Certificate" alleged that the Beneficiary had "work[ed] as a religious worker [at the organization] since July 2012." This claim, however, contradicted the Beneficiary's 2015 nonimmigrant visa application, in which she declared that she worked as a nurse in a hospital, and that she had no other employment. The Petitioner has not submitted independent, objective evidence to resolve this inconsistency. *See Matter of Ho*, 19 I&N Dec. 582, 591-92 (BIA 1988) (instructing that "[i]t is incumbent upon [the petitioner] to resolve the inconsistencies by independent objective evidence" and that "[a]ttempts to explain or reconcile the conflicting accounts, absent competent objective evidence pointing to where the truth, in fact, lies, will not suffice").

The record includes other documents that the Petitioner alleges confirm the Beneficiary's membership in the Petitioner's religious denomination before her arrival in the United States in December 2015. These documents include 2010 "Master of Dharma-Listening Sessions Certificate[s]," 2011 "Acarya Certificate[s]," and 2012 "Recognition Certificate." These documents were issued years before the relevant two-year period, and their contents were not corroborated by other independent evidence. The Petitioner thus has not sufficiently demonstrated that these documents confirm the Beneficiary's requisite membership from February 2014 through February 2016 or overcome the derogatory information revealed from the overseas investigation.

The Petitioner also presents the Beneficiary's statements entitled "Buddhism Changed My Life" and "The Explanation by [the Beneficiary]," as well as photographs purportedly showing the Beneficiary practicing her faith. These materials similarly were not corroborated by independent evidence, and the Petitioner has not sufficiently established that they overcome the derogatory information revealed from the overseas investigation. In short, we have reviewed the record in its entirety, and we determine that the Petitioner has not sufficiently shown that from February 2014 through February 2016, the Beneficiary possessed the requisite membership required under 8 C.F.R. § 214.2(r)(1)(i). *See also* 8 C.F.R. § 214.2(r)(8)(ii).

III. CONCLUSION

The Petitioner has not sufficiently established, by a preponderance of the evidence, its eligibility to classify the Beneficiary as an R-1 nonimmigrant religious worker. Specifically, the Petitioner has not sufficiently shown that the Beneficiary was "a member of a religious denomination having a bona fide non-profit religious organization in the United States for at least two years immediately preceding the time of application for admission." 8 C.F.R. § 214.2(r)(1)(i). It is the Petitioner's burden to establish eligibility for the immigration benefit sought. Here, that burden has not been met.

ORDER: The appeal is dismissed.